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EBOOK

Compliance Insights 2026

A Guide to the Regulatory Landscape

Previously, in 2024 and 2025, we witnessed a series of major regulatory announcements across the European Union. In 2026, however, the focus is shifting toward preparing and implementing these new compliance requirements.

In May 2025, the **European Securities and Markets Authority (ESMA)** published its technical advice on market abuse and SME Growth Markets as part of the **Listing Act**[1], before presenting its final report on changes to the format and content of EU prospectuses a month later[2]. Both of these will come into force during 2026 and are discussed in more detail later in this guide.

The AI Act came into force in August 2024, with an effective date of August 2026. Similarly, the **Corporate Sustainability Due Diligence Directive**[3] must be transposed into national law across the union by July 2026, having been approved in March 2024 and issuers will need to follow new rules on how to disclose certain regulated information when 2024's **European Single Access Point package (ESAP)** comes into action in July 2026[4].

The latest edition of Compliance Insights explores how the EU regulatory landscape will change in 2026, what to expect and what you need to do now to be prepared for your new obligations. It also reports on sanctions issued for compliance contraventions in recent years and provides some areas of general compliance to focus on during 2026, with the associated risks of ignoring them and best practices for mitigating and avoiding those risks.

Compliance developments during 2025

Updates on existing legislation in the last year

Market Abuse Regulation (MAR)

- France's Autorité des marchés financiers (AMF) made a call for vigilance in July 2025 to issuers, warning them of a growing trend of "insider networks." These networks are groups of individuals who seek to obtain, illegally and repeatedly, inside information with the view to committing insider dealing. AMF recommended giving insiders anti-corruption training, supplementing their codes of conduct accordingly and updating corruption risk mapping[5].

- As part of the EU Listing Act, the threshold beyond which persons discharging managerial responsibilities must report their trading in the issuer's financial instruments rose from €5,000 to €20,000 per calendar year from December 2024. National competent authorities (NCA) have the option to lower the threshold to €10,000 or raise it to €50,000 within their country. Malta reduced the threshold to €10,000 and Denmark increased its to €50,000[6].

> On 9 June 2025 the Malta Financial Services Authority (MFSA) published a "Dear CEO, dear CO"-letter setting out its findings related to the compliance efforts of Investment Service Providers in the context of MAR. The MFSA provides several pages of 'best practices' in light of inspections held between 2020 and 2024.[7]
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Markets in Financial Instruments Directive (MiFID II)

- ESMA published a call for evidence in May 2025, seeking opinions on the effectiveness of the regulatory requirements under MiFID II and, particularly, on their impact on retail investors. The closing date was 21 July, with ESMA intending to use the consultation responses to ascertain whether there are changes to be made to the current regime[8].

- A variety of actors responded to the call. Their contributions can be read on the ESMA's website.

EU Whistleblowing Directive

- In March 2025, France issued its first sanction for psychological harassment of a whistleblower. Two employees had raised concerns about practices within the bank they worked for, which helped clients evade tax[9].

- The European Commission (EC) presented a call for evidence to evaluate the impact of the implementation of the directive into national law across the EU. The call for evidence seeks the opinions of stakeholders on the effectiveness, efficiency, relevance, coherence and value of the law. The EC will implement the results of the call for evidence and public consultation in the first quarter of 2026[10].

On 1 September 2025, two years after transposing the Whistleblowing Directive, Spain launched its Independent Whistleblower Protection Authority ("AIPI"). The AIPI will monitor compliance and receive notifications from companies about their designated reporting channel officer.[11]

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PART 1

Regulatory landscape for 2026

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European Single Access Point package

EU Listing Act

The EU Listing Act was published in the Official Journal of the European Union on 14 November 2024.

Research showed that small and medium enterprises were reluctant to raise external financing on the capital markets.[12] The Listing Act is a package of proposals to address this subject by cutting red tape from the process of becoming a listed company. This includes:

Streamlining the process of creating prospectuses when companies go public.

Raising the prospectus exemption threshold for secondary issuances.

Reducing the MAR burden on issuers.

Amending MiFID II to increase the threshold for companies obliged to unbundle payments for research and execution.

Creating a new directive on multiple-vote share structures for companies gaining admission to SME growth markets.

Read the European Commission's newsletter on the Listing Act for more detail.

Following consultation and discussion, the Listing Act was eventually passed and many of the most significant aspects will come into force during 2026. Below is a breakdown of the most pertinent matters.

Prospectus Regulation: What changes in 2026?

The problem

The EU prospectus regime ensures that investors gain access to clear and comprehensive information about issuers and the securities they offer to the public. However, creating a full prospectus for every issuance can lead to a significant administrative burden, especially for smaller businesses.

What you need to know

The Listing Act simplifies the process. Below are the regulatory changes to the **Prospectus Regulation** coming in 2026.

Regulatory changes	Effective date
EU Follow-on prospectus will replace the simplified prospectus for secondary issuances, featuring: • A limit of 50 sides of A4 paper • A standardised format that dictates the sequence in which you must present the required information The follow-on prospectus only needs to focus on what is new or has changed since the issuer's initial offering.	**5 March 2026**
EU Growth issuance prospectus replaces the EU Growth prospectus for SMEs or anyone else trading on an SME growth market. It is simpler and less technical than a full prospectus, extending to no more than 75 sides of A4 paper when printed.	**5 March 2026**

Regulatory changes	Effective date
The threshold for **exemption from the requirement to publish a prospectus** for offerings will rise from a total EU consideration of less than €1 million to €12 million. However, member states can choose to reduce this to €5 million.	**5 June 2026**
Issuers will only have to include **two years of audited financial information** in their equity prospectuses, reduced from the current three-year requirement.	**5 June 2026**
Prospectuses will be required to be published in a **standardised format** and the information disclosed in a **standardised sequence** to make them more straightforward to create.	**5 June 2026**
New requirements over ESG disclosures in prospectuses. Including: • **For equity securities**, this means including whether the issuer is subject to sustainability reporting requirements under the Corporate Sustainability Reporting Directive (CSRD) • **For non-equity securities**, you must include whether these instruments are marketed as ESG or sustainability-related.	**5 June 2026**

Updates to the Market Abuse Regulation

Some issuers have complained that MAR requirements have become too onerous for many smaller businesses, leading to ESMA attempting to balance its duty to investors with reducing the administrative burden on companies.

Here are the MAR changes coming into effect in 2026

New MAR maximum sanctions

From 5 March 2026, the maximum sanctions for breaches of MAR will become more proportionate to the size of your business. The new thresholds are:

Infringement	Sanction
▪ Insider dealing ▪ Unlawful disclosure of inside information ▪ Market manipulation	15% of annual turnover (or €15 million)
▪ Failing to prevent and detect market abuse ▪ Failing to publicly disclose inside information	2% of annual turnover (or €2.5 million)
▪ Failing to meet the obligations for insider lists ▪ Infringements relating to reporting duties for managers' transactions.	0.8% of annual turnover (or €1 million)

For SMEs, the minimum fines are €1 million for failing to disclose inside information to the public and €400,000 for breaches of the obligation to create insider lists or report managers' transactions in accordance with MAR[13].

Protracted processes

From 5 June 2026, an issuer **will not have to disclose immediately inside information to the public if it relates to an intermediate step of a protracted process.** For example, in a merger, there are multiple elements that need to be in place before the deal is finalised. In these cases, the issuer needs only to disclose that last step in that process rather than reporting on every stage of the merger[14].

This is designed to reduce the amount of work required by the issuer.

Here are five examples of protracted processes and details of what the final event would be and when an issuer would have to disclose inside information on the process:

Protracted process	Final event	Moment the issuer must disclose
Merger	Approval of the **draft terms of merger** by the relevant corporate bodies.	**As soon as possible** after the governing bodies approve the draft terms.
Acquisition or disposal of a subsidiary or relevant assets	**Signing** of the share purchase agreement or asset purchase agreement.	**As soon as possible** after the agreement is signed.
Capital raising or change to capital structure	The board or other competent body's **decision to issue n**ew capital instruments.	**As soon as possible** after the governing body's decision.
Provision of financial information	The board **acknowledges or approves** the financial results.	**As soon as possible** after acknowledgement or approval.
Legal proceedings / regulatory action	**Decision by a court or authority** notified to the issuer (even if appealable).	**As soon as possible** after acknowledgement or approval.

Markets in Financial Instruments Directive: Bundling payments

From 5 June 2026, changes to MiFID II allow the **reintroduction of the option for investment firms to bundle payments for third-party investment research** with execution services. This reverses the MiFID II unbundling provisions that were meant to prevent conflicts of interest and help clients receive the best independent advice.

Companies must meet strict conditions for bundling under the new rules, including:

- A written agreement with the broker setting a remuneration methodology
- Transparent client disclosures of the firm's payment choice and policy
- Annual assessments of the quality and value of research
- Robust conflicts-of-interest controls
- Separately identifiable execution charges.

These reforms aim to help smaller issuers gain better research coverage while preserving investor protection through disclosure and governance safeguards.

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European Single Access Point package (ESAP):

What you need to report in 2026

The European Single Access Point package (ESAP) establishes a centralised repository for reporting related to a range of pieces of EU legislation connected to the areas of financial services, capital markets and sustainable finance.

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This creates greater transparency and helps investors access financial and extra-financial information to compare issuers and make better-informed investment decisions.

Companies will eventually have to report to ESAP information relating to 21 regulations and 16 directives. The first pieces of legislation come into action in 2026 and they require disclosure to the ESAP of information required by:

- Short-selling Regulation
- Prospectus Regulation
- Transparency Directive

Each EU Member State must ensure that there is at least one officially appointed mechanism (OAM) to store the information disclosed by companies, which the public should be able to access for ten years. This OAM is then responsible for feeding the information to the ESAP. The ESAP will publish the first information a year after the first legislation comes into scope, in July 2027.

Other 2026 EU regulatory changes

The Corporate Sustainability Due Diligence Directive (CSDDD) must be transposed into national law by member states by 26 July 2026. This will require in-scope organisations to implement a robust due diligence process into their environmental and human rights efforts, as well as those of their subsidiaries and the entire value chain. The first tranche of companies will start reporting from 2027.

The European Deforestation Regulation applies from 30 December 2025, with the aim of ensuring any party that brings certain commodities to market in the EU can prove that they are not produced on land that has been recently deforested.

The **ESG Ratings Regulation** applies from 2 July 2026, focusing on the transparency and integrity of companies that provide ESG ratings in the EU. Any company carrying out this offering must apply for authorisation to continue to do so.

The AI Act will set out a comprehensive suite of risk-based rules for AI developers and deployers with regard to the specific uses of AI within the EU. It will be almost fully effective from 2 August 2026, with the exception of an extended transition period for high-risk AI systems embedded into regulated products, which will last until August 2027.

The **EU AML package** aims to improve the ability of the financial sector to detect suspicious activity that could pertain to money laundering or the financing of terrorist activity. There will be implementing technical standards to create a common template for suspicious activity reports issued by 10 July 2026.

In the course of 2026, the European Commission is set to adopt revised Merger Guidelines, introducing a stronger focus on innovation competition, supply-chain resilience, and strategic autonomy. The revised Merger Guidelines are expected to bring tougher scrutiny of deals in digital, defence, energy, AI, biotech and semiconductors, as well as more Article 22 referrals.

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Many legislative acts are currently set to be amended as part of the EU's 'simplification' impetus meaning the information above could be outdated shortly after this Guide's publication. Although the outlook partly became more clear in the last months of 2025, the ongoing changes will require scrutiny throughout 2026.

- On 9 December 2025 it was announced[15] the Council's presidency and European Parliament negotiators reached a provisional agreement to 'simplify' the CSDD. The agreement includes i.a. increasing the thresholds, providing flexibility regarding the identification and assessment of adverse impacts, and postponing the transposition deadline to 26 July 2028. Under this agreement, the first tranche of companies would start reporting from 2029.

- On 4 December 2025 it was announced[16] the Council's presidency and European Parliament negotiators reached a provisional agreement to 'simplify' the EUDR and extend the application date for all operators to 30 December 2026.

- On 19 November 2025 the European Commission published a proposal to amend the AI Act and "ensure timely, smooth, and proportionate implementation of certain of the AI Act's provisions".[17] The proposal includes extended compliances deadlines and additional grace periods. The ensuing political controversy however indicates further adoption of the Commission's proposal (in its current form) is uncertain.

- On 4 December 2025 the European Commissionlaunched the "Market Integration Package" with a stated goal of removing obstacles to market integration and leveraging scale, facilitating innovation, streamlining and enhancing supervision, simplification and burden reduction.[18]

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The 'package' envisions broad regulatory changes:

"Today's package is composed of one Commission communication and three legislative proposals.

A regulation proposal which will amend:

- The European Securities and Markets Authority (ESMA) Regulation
- The European Markets Infrastructure Regulation (EMIR)
- The Markets in Financial Instruments Regulation (MIFIR)
- The Central Securities Depositories Regulation (CSDR)
- The Distributed Ledger technology Pilot Regulation (DLTPR)
- The Markets in crypto-asset Regulation (MiCA)
- The Cross-Border Distribution of Funds Regulation (CBDR)

That regulation proposal will also include targeted amendments, in line with the changes proposed to the ESMA regulation aimed at making EU supervision more efficient, to:

- The Central Counterparties Recovery and Resolution Regulation (CCPRRR)
- The Securities Financing Transactions Regulation (SFTR)
- The Credit Ratings Agency Regulation (CRAR)
- The Benchmark Regulation (BMR)
- The simple, transparent and standardised (STS) securitisation Regulation
- The European Green Bond Regulation (EuGB Regulation)
- The Environmental, Social and Governance (ESG) rating Regulation
- The directive proposal will amend:
- The Undertakings for Collective Investment in Transferable Securities (UCITS) Directive
- The Alternative Investment Fund Managers Directive (AIFMD)
- The Markets in Financial Instruments Directive (MiFID)

Finally, today's package includes a proposal for a Regulation replacing the Settlement Finality Directive and amending the Financial Collateral Directive (FCD)[19]."

While the Commission's press release stressed the need to strengthen the EU's economy and bolster its international position, the launch of this sweeping package also sparks fears of far-reaching centralisation. Whether the package will be further adopted and become law is uncertain.

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Empower your leaders for better compliance

Euronext Corporate Solutions provides a comprehensive solution package to strengthen governance and ethical oversight. From creating a speak-up culture to meeting your obligations under MAR, find out how you can help your team simplify compliance.

PART 2

Regulatory enforcement and sanctions

On October 16 2025, ESMA released its consolidated report on sanctions imposed in EU member states during 2024. Regulators imposed more than 970 measures, with an aggregated total of more than €100 million.

> The highest number of breaches were made under MAR, MiFID II and MiFIR. The ESMA indicates it will use the report to "further foster discussions between national securities markets authorities on the effective and consistent implementation of capital markets rules and continue working towards ensuring that similar breaches lead to similar enforcement outcomes across the EU, irrespective of where they have been initiated[20]."
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Key findings included:

There was an aggregated value of €45,507,168 for 377 breaches of MAR in 2024.

There was an aggregated value of €44,498,264 for 294 breaches of MiFID II in 2024.

The highest administrative fine during 2024 was €12,975,000, imposed in Germany.

The number of MAR sanctions increased from 299 in 2023 to 377 in 2024.

The number of MiFID II sanctions increased from 289 in 2023 to 294 in 2024.

44% of MAR fines were imposed on natural persons, with 56% on legal persons.

The most common MAR breaches regarded market manipulation, managers' transactions, insider dealing and the unlawful disclosure of inside information.

With the aggregated value of fines increasing between 2023 and 2024, it demonstrates that NCAs are serious about dissuading individuals and businesses from contravening legislation with punitive sanctions. This focus on compliance has repercussions for organisations across the continent and illustrates the importance of having robust controls in place.

Fig. 1: Amount of administrative fines per EU Act, ESMA43-1527801302-1828[20]

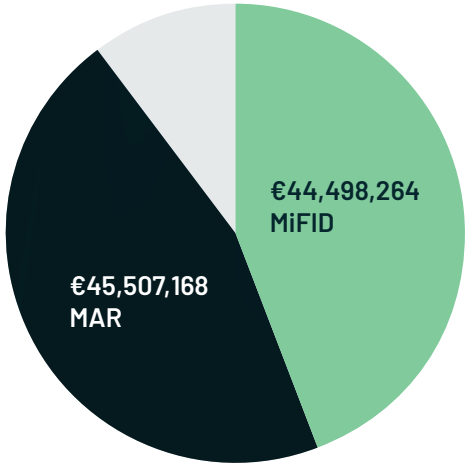
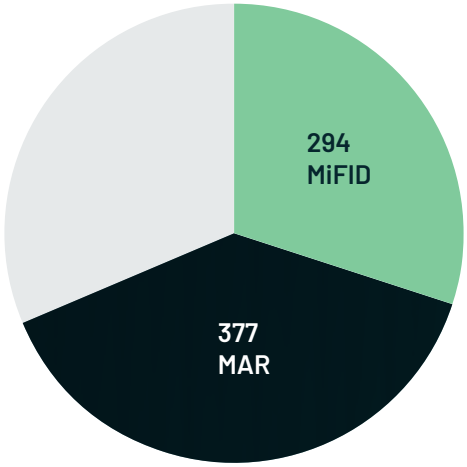


Fig. 2: Number of sanctions and measures per EU Act, ESMA43-1527801302-1828[20]



PART 3

Areas of compliance to focus on in 2026

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Proactive regulatory monitoring

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Regulatory approval governance

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Antibribery and corruption

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AI and compliance

As we move into 2026, there is a wide variety of areas of compliance that require your attention. Here are some topics on which to focus, the risks inherent in failing to pay them close attention and best practices for mitigating those risks.

Policy management

Risks

- Outdated or inconsistent policies can lead to your team carrying out tasks and procedures that are not compatible with the latest legislative requirements. This can lead to breaches of MAR, GDPR and other such legislation.
- You can face sanctions from regulators for these breaches, including punitive fines and restrictions on trading.

Best practices

- **Create policy templates** to ensure that you establish new policies in a comprehensive and consistent manner that takes stakeholders through the necessary steps to produce robust documentation.
- **Strict version** control means that all stakeholders work from the latest iteration of each policy and, therefore, work to the correct procedures for compliance.
- **Implement a review cycle** to regularly audit and update policies accordingly. Carry this out at least every year, if not more often.
- **Mandatory staff attestation** means that you can be sure that all staff members have read and understood the latest policy documentation and are fully aware of their obligations and requirements.

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Conflicts of interest

Risks

- When a stakeholder is not acting in the best interest of the organisation because it conflicts with an outside interest of any kind, their influence can result in impaired decision-making and missed opportunities.
- A conflict between a team member's interests and those of a client may lead to them purposefully offering suboptimal advice or service to that client, which reflects negatively on your business.
- National competent authorities can impose sanctions under Article 23 of MiFID II and, where it results in market abuse or manipulation, MAR.

Best practices

- **Create a conflict of interest disclosure workflow** to encourage employees to declare any conflicts that they encounter before they cause detrimental actions, allowing you to mitigate the effect.
- **Log your employees' outside interests** and cross-reference them with your client and vendor lists. This will alert you to any potential conflicts before they become a problem for your organisation.
- **Implement an employee personal trading pre-clearance process** to decline permission for staff to make transactions that might cause a conflict of interest.
- **Carry out trade monitoring** to spot any suspicious activity as it happens and to ensure your employees are not trading in restricted products.

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Proactive regulatory monitoring

Risks

- If you fail to spot upcoming changes to your obligations as they are announced, it can lead to you having little time to prepare for changes that may require significant thought and input. This leads to inefficient change management protocols.
- You might even end up missing the dates that legislation becomes effective or not having completed or implemented the necessary steps for compliance in time.
- This can result in penalties issued by your NCA for non-compliance with the new or amended legislation.

Best practices

- **Assign an individual** or team to own the process of scanning for regulatory change. With this as a specified task, they can build into their workflow a regular deep dive into upcoming legislation and updates to current laws.
- **Monitor regulatory updates** from ESMA, your country's NCA and the Official Journal of the EU. These will provide notice of forthcoming legislative changes.
- **Maintain a regulatory calendar** that you share with all necessary stakeholders. As soon as you are aware of regulatory changes, add them to the calendar and assign action items to relevant people or departments

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Regulatory approval governance

Risks

- Your company could unwittingly make unauthorised disclosures or trades because there was confusion over whether a document or request was officially approved or not.
- There could be breaches of Article 17 of MAR on disclosing inside information if there is no standardised process for ensuring reports are signed off by the correct parties before being made public.
- The company may struggle to communicate accurately and effectively with clients, leading to a breakdown in trust and ill feeling towards the business.

Best practices

- **Align all sign-offs** on important disclosures, documents and reports, based on a RACI matrix that assigns roles and responsibilities to the correct stakeholders.
- **Implement digital workflows and approvals** to ensure there are timestamps connected to all activity within the flow. This also allows you to block tasks from starting until the previous step is completed and approved.
- **Centralise trade-reporting** to create a single online workflow for PDMRs and employees to request personal trades and for your team to approve or decline them, based on your internal policies and regulatory obligations.

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Anti-bribery and corruption

Risks

- Failing to prevent bribery and corruption can make the company liable under local anti-bribery and corruption laws, as well as the EU PIF Directive.
- Where there has been impaired decision-making due to bribes offered to team members, the ensuing legal action and reporting can cause reputational harm to your business.
- Clients, partners and regulators can lose trust in your business and its ability to carry out its work in a fair and transparent manner.

Best practices

- **Carry out risk-based due diligence** on third parties with whom you engage in business.
- **Keep gift and hospitality logs** to monitor activity and flag undue influence before it becomes endemic.
- **Implement employee training sessions** that inform staff of their responsibilities regarding ethical behaviour.
- **Create and monitor whistleblowing channels** to allow stakeholders to report any corrupt behaviour in confidence.
- **Keep audit trails for high-risk transactions** to be able to track who made decisions and the reasons behind them.

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LEI code

Risks

- You can face blocks to trading if you do not have legally recognised LEI codes for your entities.
- This can lead to reporting failures under MiFID II, which can result in sanctions.

Best practices

- **Find a solution that provides centralised LEI onboarding** and renewal tracking.
- **Implement pre-trade LEI validation** in order systems to ensure you are compliant with the LEI requirements.
- **Check the status of your codes** and the information related to them, challenging inaccurate data to correct the records.
- **Use an accredited LEI issuer** to gain codes for your entities that meet international standards.

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AI and compliance

Risks

- Failure to meet risk-based rules can lead to non-compliance with the EU AI Act when it enters into effect.
- Unmonitored AI use can lead to GDPR breaches that put the company in danger of legal action and punitive sanctions.
- Incorrect or inaccurate information can lead to bias or discrimination in client decisions that can result in negative outcomes.

Best practices

- **Create an AI usage inventory** to manage the implementation of artificial intelligence systems.
- **Understand the risk classification** of your AI tools and ensure you are well positioned to inform your approach to using them.
- **Ensure a human oversees AI workflows** to spot any obvious errors that could cause problems further down the line if not challenged.

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CONCLUSION

The ongoing rollout of the EU Listing Act is the most significant compliance topic for 2026 for many European organisations, impacting a number of matters related to the capital markets. This year also marks the beginning of reporting to the ESAP, which is a major step towards digital transparency across the union. This will help create a more accessible and auditable approach to compliance in the future, requiring affected organisations to create robust reporting workflows.

In addition to major legislative changes and new directives and regulations, there are many underlying compliance matters that require ongoing attention. This means a strategic approach is necessary to guide the use of tools and platforms designed to meet the many challenges that compliance functions face in their day-to-day duties.

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About EURONEXT CORPORATE SOLUTIONS

Euronext Corporate Solutions is a market leader in providing intuitive and effective platforms that reduce manual work and ensure you meet your regulatory requirements. Our software is designed to support a range of obligations, including those under:

- **Market Abuse Regulation (MAR):** Managing insider lists, closed periods and disclosure obligations.
- **MiFID II:** Maintaining accurate records and ensuring transparency in financial operations.
- **EU Whistleblowing Directive:** Enabling secure, confidential reporting channels within organisations.

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